

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DIVINA VIDENA,

Petitioner

VS.

JULIAN CHUNG,

Respondent

) Case Number: FLD-24-397237

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear in-person or via Zoom video at 9AM on 7/23/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Julian Chung (Father) and Respondent Divina Videna (Mother) have one minor child together, Athena (DOB 8/3/2017, age 8). In an order filed 10/8/2024, the juvenile court awarded sole legal and physical custody of Athena to Mother with parenting time for Father every Sunday from 10AM to 6PM. The juvenile court encouraged the parties to use Our Family Wizard or a similar app to communicate, ordered that their communications may be recorded, and modified the “parties' restraining orders . . . to include [a] ‘carve-out’ for visit exchanges and communication regarding visitation.”
- 2) On for hearing is Mother’s 4/27/2026 request for a change in Father’s parenting time to every Sunday from 12PM to 6PM so that Athena can attend religious activities on Sunday morning. She also seeks an order for the parties to use the Talking Parents app for all parenting-related matters;

1 she states Father has failed to consistently use the app or respond to her messages in a timely
2 manner.

- 3 3) Father has filed a response in which he disputes Mother's statements about his use of the Talking
4 Parents app. He also states that Mother cancels his visits without good reason, for example, to
5 allow Athena to attend a birthday party. Father has submitted a transcript of a video in which
6 Athena states that Mother told Father that Athena was sick and canceled a visit, when she was
7 actually not sick.

8 **B. Findings and Orders**

- 9 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
10 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
11 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
12 child is the United States.
- 13 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 7/23/2026 in**
14 **Department 404.**
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